

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

Purchased:

-----X
ZAVIAN JOSEPH,

Plaintiff,

-against-

Plaintiff designates

Bronx County as the place of trial

The basis of the venue is where the
tort arose and where plaintiff resides

CITY OF NEW YORK, Individually and officially in their
capacities as New York City Police Officers, KARAM
JUBRAN, and JOHN or JANE DOE 1-10,

SUMMONS

Defendants.
-----X

TO THE ABOVE-NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED, to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bayside, New York
November 12, 2019



SIM & DEPAOLA, LLP

BY: Markus A. Wilson, Esq.

Attorneys for Plaintiff(s)

42-40 Bell Boulevard Suite 201

Bayside, New York 11361

(718) 281-0400

TO:

**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**

100 Church Street
New York, New York 10007

P.O. KARAM JUBRAN OF THE 47TH PCT.

SHIELD #23873, TAX ID #930446,

4111 Laconia Ave,
The Bronx, NY 10466

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
ZAVIAN JOSEPH,

Index No.:

Plaintiff,

-against-

VERIFIED COMPLAINTCITY OF NEW YORK, Individually and officially in their
capacities as New York City Police Officers, KARAM
JUBRAN, and JOHN or JANE DOE 1-10,Defendants.
-----X

Plaintiff, ZAVIAN JOSEPH, by his attorneys, Sim & DePaola, LLP, for his complaint
against the above Defendants, alleges as follows:

1. The claim arises from a March 28, 2018 incident, in which defendants, acting under color of state law, unlawfully arrested and detained Mr. Joseph. Mr. Joseph was subsequently charged with Disorderly Conduct. As a result, Mr. Joseph was deprived of his liberty and suffered physical and psychological injuries. Mr. Joseph was wrongfully detained for approximately two (2) hours. He was maliciously prosecuted until he was acquitted after trial on August 14, 2018 before the Hon. V. Quattrochi.
2. Plaintiff seeks monetary damages (compensatory and punitive) against Defendants, as well as an award of costs and attorneys' fees, and such other and further relief as the Court deems just and proper.

PARTIES

3. Plaintiff ZAVIAN JOSEPH (“Mr. Joseph”) resides at 739 E. 226th Street, Bronx County, State of New York.
4. The Defendant City of New York (or “the City”) is a municipal corporation organized under the laws of the State of New York.
5. At all times relevant hereto, Defendant City, acting through the New York City Police Department (or “NYPD”) was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel, including police officers, detectives and supervisory officers as well as the individually named Defendants herein.
6. In addition, at all times here relevant, Defendant City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and the State of New York.
7. Defendant Police Officer Karam Jubran (“Jubran”) was, at all times here relevant, a police officer employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant Jubran was, at the times relevant herein, a Police Officer under Shield #23873, Tax ID #930446 in the 47th Precinct, located at 4111 Laconia Ave, The Bronx, NY 10466. Defendant Jubran is being sued in her individual and official capacities.
8. At all times relevant herein, Defendants John or Jane Doe 1 through 10 were police officers, detectives, supervisors, policy makers and/or officials employed by the NYPD. At this time, Plaintiff does not know the true names and/or tax registry

numbers of Defendants John or Jane Doe 1 through 10, as such knowledge is within the exclusive possession of defendants.

9. At all times relevant herein, Defendants John or Jane Doe 1 through 10 were acting as agents, servants and employees of the City of New York, the NYPD. Defendants John or Jane Doe 1 through 10 are being sued in their individual and official capacities.
10. At all times here mentioned, Defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.
11. Within 90 days of accrual dates for these claims, Plaintiff timely filed a written notice of claim with the New York City Office of the Comptroller.
12. Over 30 days have elapsed since the filing of those notices, and this matter has not been settled or otherwise disposed of.
13. Plaintiff has complied with municipal defendant's request for an oral examination pursuant to Section 50-H of the New York General Municipal Law.
14. This action has been commenced within one year and ninety days from the relevant accrual dates.

FACTUAL CHARGES

15. On March 27, 2018, Mr. Joseph went to the 47th NYPD Precinct, located at 4111 Laconia Avenue, County of Bronx, State of New York, to speak to an officer about having a vehicle identification number (VIN) verification form completed by a police officer.

16. Mr. Joseph spoke to an officer at the front desk and was told that an officer will come to his house to complete the form. Mr. Joseph does not recall the name of the officer he spoke to at the front desk.
17. On March 27, 2018, Mr. Joseph waited at home, but no NYPD officer came to complete the VIN verification form.
18. On March 28, 2018, at approximately 12:00 P.M., Mr. Joseph went to the 47th NYPD Precinct, located at 4111 Laconia Avenue, County of Bronx, State of New York, and approached the front desk.
19. Mr. Joseph spoke to Jane Doe 1, a female NYPD officer at the front desk.
20. Mr. Joseph explained to Jane Doe 1 that he had made an appointment, the day before for an officer to meet him to complete his VIN verification form.
21. While Mr. Joseph was discussing the situation with Jane Doe 1 at the front desk, he was approached by defendant Jubran who illegally grabbed him without probable cause or justification, as Mr. Joseph was merely talking to Jane Doe 1, regarding his VIN verification form.
22. At no time, prior to defendant Jubran grabbing Mr. Joseph, did any officer ask Mr. Joseph to leave the Precinct.
23. At no time, prior to defendant Jubran grabbing Mr. Joseph, did he raise his voice or yell at anyone.
24. Defendant Jubran continued to aggressively push Mr. Joseph towards the front door of the precinct without any reason or justification.
25. Defendants John Doe 2-5, four male police officers in uniform, and Jane Doe 6, a female police officer in uniform, approached Mr. Joseph and grabbed by his arms and

legs in an extremely aggressive manner and began dragging him out of the front door of the precinct without justification.

26. After being dragged outside, another male police officer, John Doe 8 approached Mr. Joseph and illegally put a Taser to his chest without probable cause or justification, causing Mr. Joseph great alarm and fear.
27. Mr. Joseph was taken by defendants to the front desk and illegally searched without probable cause or justification.
28. Said search yielded nothing of probative value related to his unlawful arrest and detention, such as contraband of any kind.
29. Then Mr. Joseph was illegally held in a cell.
30. Mr. Joseph was illegally fingerprinted and photographed at the precinct.
31. Then at approximately 2:00 PM Mr. Joseph was released with a summons which falsely charged Mr. Joseph with Disorderly Conduct.
32. Mr. Joseph had not committed any crimes or violations of the law which would allow the defendants to arrest plaintiff.
33. Defendants, including Jubran, committed multiple assault and batteries to plaintiff's person including but not limited to being illegally grabbed by defendants.
34. Defendants, including Jubran, never possessed a valid arrest warrant authorizing the arrest of Mr. Joseph.
35. Defendants, including Jubran, never possessed probable cause to arrest Mr. Joseph, as he did not commit any arrestable offenses, including Disorderly Conduct.
36. Defendant John Doe 1 was Mr. Joseph's arresting officer.

37. Defendants, including Jubran and John or Jane Doe 1 through 8, falsely arrested Plaintiff claiming he committed Disorderly Conduct.
38. Defendants, including Jubran and John or Jane Doe 1 through 8, were fully aware that Mr. Joseph did not commit the violation of Disorderly Conduct, but knowingly and intentionally chose to state otherwise to justify and excuse an otherwise invalid arrest.
39. Defendant Jubran signed the Summons, knowingly and falsely accusing Mr. Joseph of Disorderly Conduct, which Jubran knew to be untrue.
40. Mr. Joseph was formally charged with Disorderly Conduct.
41. At no point did the Defendants, including Jubran and John or Jane Doe 1 through 8, ever observe Mr. Joseph commit any crime or offense.
42. At no point were the defendants, including Jubran and John or Jane Doe 1 through 8, ever told by any witnesses that Mr. Joseph committed any crime or violation of the law.
43. The defendants, including Jubran and John or Jane Doe 1 through 8, had no probable cause or reasonable suspicion to arrest, detain or stop Mr. Joseph.
44. Defendants, including Jubran and John or Jane Doe 1 through 8, never possessed probable cause to believe a prosecution would succeed against Plaintiff, or that Plaintiff was guilty of any crime.
45. Defendants, including Jubran and John or Jane Doe 1 through 8, intentionally, knowingly and falsely made said allegations to conceal their otherwise illegal, tortious and sinister acts, namely stopping, detaining and arresting an individual without probable cause due to no disorderly conduct being committed.

46. Defendants, including Jubran and John or Jane Doe 1 through 8, suppressed evidence and engaged in conduct undertaken in bad faith.
47. Defendants have displayed a pattern and practice of falsely alleging disorderly conduct to be committed to justify otherwise unwarranted arrests.
48. Mr. Joseph was forced to return to court to fight the false charge levied against him, until he was acquitted after trial on August 14, 2018 before the Hon. V. Quattrochi.
49. During all of the events described, the Defendants, including Jubran and John Doe 1, acted maliciously and with intent to injure Plaintiff.
50. At all times relevant hereto, Defendants, including Jubran and John/Jane Doe 1-8, were involved in the decision to arrest Plaintiff without probable cause or failed to intervene when they observed others arresting Plaintiff without probable cause.
51. At all times relevant hereto, Defendants, including Jubran and John or Jane Doe 1 through 8, engaged in fraud, perjury, the suppression of evidence and other actions conducted in bad faith, or failed to intervene when defendants observed others doing so, all in furtherance of Plaintiff's criminal prosecution.
52. As a direct and proximate result of the acts of defendants, including Jubran and John or Jane Does 1 through 8, Plaintiff suffered the following injuries and damages: violations of his rights pursuant to the Fourth and Fourteenth Amendment of the United States Constitution, violations of New York State law, physical injury, physical pain and suffering, emotional trauma and suffering, including fear, embarrassment, humiliation, emotional distress, frustration, extreme inconvenience, anxiety, loss of liberty and harm to reputation.

FIRST CAUSE OF ACTIONFalse Arrest and False Imprisonment Under
New York State Law

53. The above paragraphs are here incorporated by reference as though fully set forth.
54. Defendants subjected Plaintiff to false arrest, false imprisonment, and deprivation of liberty without probable cause.
55. Plaintiff was conscious of his confinement.
56. Plaintiff did not consent to his confinement.
57. Plaintiff's arrest and false imprisonment was not otherwise privileged.
58. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
59. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
60. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

SECOND CAUSE OF ACTIONFalse Arrest and False Imprisonment Under
42 U.S.C. § 1983 Against Individual Defendants

61. The above paragraphs are here incorporated by reference as though fully set forth.
62. The Defendants violated the Fourth and Fourteenth Amendments to the U.S. Constitution by wrongfully and illegally arresting, detaining and imprisoning Plaintiff.
63. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and imprisonment of Plaintiff was carried out without a valid warrant, without Plaintiff's consent, and without probable cause or reasonable suspicion.

64. At all relevant times, Defendants acted forcibly in apprehending, arresting, and imprisoning Plaintiff.

65. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

66. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

THIRD CAUSE OF ACTION

Assault and Battery Under
New York State Law

67. The above paragraphs are here incorporated by reference as though fully set forth.

68. Defendants made plaintiff fear for his physical well-being and safety and placed him in apprehension of immediate harmful and/or offensive touching.

69. Defendants engaged in and subjected plaintiff to immediate harmful and/or offensive touching and battered him without his consent.

70. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

71. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

72. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

FOURTH CAUSE OF ACTION

Excessive Force Under
42 U.S.C. § 1983 Against Individual Defendants

73. The above paragraphs are here incorporated by reference as though fully set forth.

74. The Defendants violated Plaintiff's rights under the Fourth and Fourteenth Amendments, because they used unreasonable force without Plaintiff's consent.
75. Defendants engaged in and subjected Plaintiff to immediate harmful and/or offensive touching and battered him without his consent.
76. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.
77. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

FIFTH CAUSE OF ACTION

Malicious Prosecution Under
New York State Law

78. The above paragraphs are here incorporated by reference as though fully set forth.
79. Defendants initiated the prosecution against Plaintiff.
80. Defendants lacked probable cause to believe Plaintiff was guilty or that a prosecution would succeed.
81. Defendants acted with malice.
82. The prosecution was terminated in Plaintiff's favor when the criminal charge was dismissed and sealed.
83. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
84. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.
85. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

SIXTH CAUSE OF ACTION

Malicious Prosecution Under
42 U.S.C. § 1983 Against Individual Defendants

86. The above paragraphs are here incorporated by reference as though fully set forth.
87. Defendants initiated the prosecution against Plaintiff.
88. Defendants lacked probable cause to believe Plaintiff was guilty or that a prosecution would succeed.
89. Defendants acted with malice.
90. The prosecution was terminated in Plaintiff's favor when he all charges were dismissed and sealed.
91. Accordingly, Defendants violated Plaintiff's Fourth Amendment rights.
92. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
93. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

SEVENTH CAUSE OF ACTION

Malicious Abuse of Process Under
New York State Law

94. The above paragraphs are here incorporated by reference as though fully set forth.
95. Defendants arrested, detained and caused a criminal prosecution to be initiated against Plaintiff to compel the compliance or forbearance of some act.
96. Defendants had no excuse or justification to forcibly detain or initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.
97. Defendants intended to inflict substantial harm upon Plaintiff.

98. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiff's criminal prosecution.

99. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

100. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

101. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

EIGHTH CAUSE OF ACTION
Malicious Abuse of Process Under
42 U.S.C. § 1983 Against Individual Defendants

102. The above paragraphs are here incorporated by reference as though fully set forth.

103. Defendants arrested, detained and caused a criminal prosecution to be initiated against Plaintiff to compel the compliance or forbearance of some act.

104. Defendants had no excuse or justification to forcibly detain and initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.

105. Defendants intended to inflict substantial harm upon Plaintiff.

106. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiff's criminal prosecution.

107. Defendants' actions deprived Plaintiff of his right to free from illegal searches and seizures, as well as his right not to be deprived of his liberty without due process of law.

108. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

109. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

NINTH CAUSE OF ACTION

Failure to Intervene Under
New York State Law

110. The above paragraphs are here incorporated by reference as though fully set forth.

111. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct, observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

112. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

113. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

114. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

TENTH CAUSE OF ACTION

Failure to Intervene Under
42 U.S.C. § 1983 Against Individual Defendants

115. The above paragraphs are here incorporated by reference as though fully set forth.

116. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.
117. Accordingly, the Defendants who failed to intervene violated the Fourth and Fourteenth Amendments.
118. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
119. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
120. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

ELEVENTH CAUSE OF ACTION

Negligent Hiring, Retention and Supervision Under
New York State Law

121. The above paragraphs are here incorporated by reference as though fully set forth.
122. Defendant City owed a duty of care to Plaintiff to adequately hire, retain and supervise its employee defendants.
123. Defendant City breached that duty of care.
124. Defendant City placed defendants in a position where they could inflict foreseeable harm.
125. Defendant City knew or should have known of its employee defendants' propensity for violating the individual rights granted under the United States

Constitution and the laws of the State of New York, prior to the injuries incurred by Plaintiff.

126. Defendant City failed to take reasonable measures in hiring, retaining and supervising its employee defendants that would have prevented the aforesaid injuries to Plaintiff.

127. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

128. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

TWELFTH CAUSE OF ACTION

Municipal “*Monell*” Liability Under
42 U.S.C. § 1983 Against Defendant City

129. The above paragraphs are here incorporated by reference as though fully set forth.

130. Defendant City maintained a policy, custom or practice that caused Plaintiff to be deprived of his Constitutional right to free from illegal searches and seizures.

131. Defendant City’s illegal practice is so consistent and widespread that it constitutes a custom or usage of which a supervising policy maker must have been aware of.

132. Defendant City and its policymakers failed to provide adequate training or supervision to subordinates to such an extent that it is tantamount to their deliberate indifference towards the rights of those who come into contact with Defendant City’s employees.

133. Defendant City’s employees engaged in such egregious and flagrant violations of Plaintiff’s Constitutional rights that the need for enhanced supervision and training is

obvious and therefore tantamount to a display of deliberate indifference by Defendant City and its policymakers towards the rights of individuals who come into contact with defendant City's employees.

134. Defendant City's conduct violated Plaintiff's rights under the Fourth and Fourteenth Amendments to the United States Constitution.

135. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

136. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

WHEREFORE, Plaintiff respectfully requests judgment against Defendants, jointly and severally, as follows:

- a) On the First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- b) On the Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- c) On the Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- d) On the Fourth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- e) On the Fifth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- f) On the Sixth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- g) On the Seventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- h) On the Eighth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- i) On the Ninth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- j) On the Tenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- k) On the Eleventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
 - l) On the Twelfth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
 - m) Awarding Plaintiff punitive damages in an amount to be determined by a jury on all causes of action set forth herein;
 - n) Awarding Plaintiff reasonable attorneys' fees and costs pursuant to 28 U.S.C. § 1988;
- Together with the costs and disbursements of this action

Dated: Bayside, New York
November 12, 2019



SIM & DEPAOLA, LLP
By: Markus A. Wilson Esq.
Attorneys for Plaintiff
4240 Bell Blvd., Suite 201
Bayside, NY 11361
T: (718) 281-0400
F: (718) 631-2700

ATTORNEY VERIFICATION

I, Markus A. Wilson, an attorney admitted to practice in the courts of New York State, state that I am associated with the firm of **SIM & DEPAOLA, LLP**, the attorneys of record for Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by myself and not by Plaintiff, is because Plaintiff resides outside the county where deponent maintains his office. I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York
November 12, 2019


MARKUS A. WILSON, ESQ.

Index No.:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

ZAVIAN JOSEPH,

Plaintiff,

-against-

CITY OF NEW YORK, Individually and officially in their capacities as New York City Police
Officers, KARAM JUBRAN, and JOHN or JANE DOE 1-10,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

SIM & DEPAOLA, LLP
BY: MARKUS A. WILSON
Attorney for Plaintiff(s)
42-40 Bell Boulevard
Bayside, NY 11361
Tel. (718) 281-0400

To: CORPORATION COUNSEL OF NEW YORK

Attorney(s) for Defendants

Service of a copy of the within is hereby admitted.
Dated

Attorney(s) for